BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA -- SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,

Defendants.

Case No. 2:26-cv-02847-DAD-CKD

[PROPOSED] ORDER DENYING DEFENDANT UNITED PARCEL SERVICE, INC.'S RULE 12(b)(6) MOTION TO DISMISS

Hearing: October 5, 2026
Time: 1:30 p.m.
Courtroom: 4 (civil L&M by Zoom)
Judge: Hon. Dale A. Drozd

Defendant United Parcel Service, Inc.'s Motion to Dismiss pursuant to Federal Rule of Civil Procedure 12(b)(6) (ECF No. 7) came on for hearing on October 5, 2026. Plaintiff BRENDAN NGEHSI NEWANFORBI appeared in propria persona. Defendant appeared through counsel. The Court, having considered the papers and arguments, and good cause appearing, ORDERS as follows:

1. The motion is DENIED as to the First Cause of Action (Cal. Penal Code section 290.46(j)(2)(E)).

2. The motion is DENIED as to the Third, Fourth, and Sixth Causes of Action.

3. The Second Cause of Action (failure to hire in violation of public policy) is

DISMISSED WITH LEAVE TO AMEND.

4. The Fifth Cause of Action (negligence per se) is DISMISSED WITH LEAVE TO AMEND.

5. Plaintiff shall file any amended complaint within twenty-one (21) days of this Order. Defendant shall file a responsive pleading within the time provided by the Federal Rules of Civil Procedure.

IT IS SO ORDERED.

Dated: _____, 2026

_____

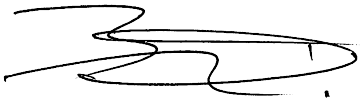
HON. DALE A. DROZD

United States District Judge

Presented by:

Dated: August 28, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

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